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Convention on the Rights of Persons with Disabilities

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Consideration of reports submitted by parties to the Convention under article 35

Replies of Viet Nam to the list of issues in relation to its initial report*

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* The present document is being issued without formal editing.

Please recycle

I. Introduction

1. The first Report on results of the CRPD implementation was submitted by Viet Nam to the United Nations in 2017. Subsequently in 2022, the Committee on the Rights of Persons with Disabilities sent a List of Issues to Viet Nam, asking for more information.

2. Based on the list of 33 issues submitted by the Committee, this Report provides detailed information as follows:

II. Replies to the list of issues (CRPD/C/VNM/Q/1)

A. Purpose and general obligations (Articles 1 to 4)

Reply to paragraph 1 (a) of the list of issues

3. The concepts of "communication", "language", "reasonable accommodation", "universal design", and "discrimination on the basis of disability" have been incorporated into the Vietnamese legal system and are clearly specified in the Constitution, Laws, Decrees, Circulars, and law enforcement guidance documents.

Reply to paragraph 1 (b) of the list of issues

4. The Law on People with Disabilities (PWDs) (Article 3) classifies 06 types of disabilities (including mobility; hearing and speaking; visual; mental; intellectual; other disability/ impairments) into 03 levels (mild - severe – very severe).

5. The above classification of disabilities serves as the basis for developing and implementing universal support policies that are appropriate to the level of disability, ensuring fairness and equality in the enjoyment of policy benefits and rights of PWDs.

Reply to paragraph 1 (c) of the list of issues

6. The Law on PWDs (Article 9) affirms the role of organizations of PWDs and organizations for PWDs involved in the development of policies and laws for PWDs and in the supervision of their implementation.

Reply to paragraph 1 (d) of the list of issues

7. Decree No. 126/2024/ND-CP (Article 7), which replaces Decree No. 45/2010/ND-CP, stipulates the organization, operation, and management of associations. It encourages and creates conditions for associations to participate in the provision of services, consultations, policy counter-arguments, programs, projects, and other activities; funding support in line with tasks assigned by competent authorities and facilities the dissemination of the State's legal guidelines and policies.

B. Specific rights (Articles 5 to 30)

Article 5
Equality and non-discrimination

Reply to paragraph 2 (a) of the list of issues

8. The Law on Complaints in Viet Nam establishes a mechanism whereby all people, including PWDs, have the right to complain, and competent authorities are responsible for resolving these complaints within the prescribed time limit. To date, no complaints or denunciations regarding discrimination on the ground of disability have been recorded.

Reply to paragraph 2 (b) of the list of issues

9. The Constitution (Article 16), the Law on PWDs (Clause 1, Article 14), and the Labour Code (Articles 3 and 8) prohibit discrimination against PWDs. Mechanisms to monitor the implementation of laws and policies include:

- Complaints and denunciations by citizens, made according to the Law on Complaints and Law on Denunciation;
- Organizations of PWDs conducting supervision according to Article 9 of the Law on PWDs;
- Feedback, comments, and recommendations by citizens, made in accordance with the Law on Reception of Citizens;
- Supervision by the National Assembly and People's Councils at all levels;
- Social counter-arguments through the Viet Nam Fatherland Front and its member organizations, including organizations of PWDs.

Reply to paragraph 2 (c) of the list of issues

10. After the CRPD was ratified by the National Assembly of Viet Nam, Viet Nam has: (1) adopted a CRPD implementation plan (Decision 1100/QD-TTg in 2016); (2) Reviewed, amended, and promulgated several documents to ensure alignment with the Convention, following the procedural guidelines set forth by the Law on Promulgation of Legislative Documents.

Reply to paragraph 2 (d) of the list of issues

11. Viet Nam does not deny reasonable accommodation. The Law on Promulgation of Legislative Documents (Article 5) provides for principles that the development of legal documents must ensure constitutionality, legality, and consistency within the legal system; any document not in line with the CRPD must be adjusted.

Article 6
Women with disabilities

Reply to paragraph 3 (a) of the list of issues

12. In Viet Nam, there are thousands of associations, including large ones, such as the Women's Union, the Association for the Blind, the Association in Support of Vietnamese Handicapped and Orphans, the Viet Nam Relief Association for the Handicapped, and the Association for Victims of Agent Orange/Dioxin, among others, operating at 4 levels: central, provincial, district, and commune. Of these, over 50% are led by women.

Reply to paragraph 3 (b) of the list of issues

13. The Law on PWDs (Article 9, Article 16), Decree No.126/2024/ND-CP (Article 7) stipulates policies to encourage and support organizations of PWDs to participate in providing public services, such as determining the level of disability severity, handling with social benefits, health services, finance, education, vocational training, employment. The National Strategy on Gender Equality (point I.2.a, Resolution No. 28/NQ-CP in 2021) sets the target that "by 2030, 75% of state management agencies and local authorities at all levels will have key female leaders". Decision No. 1190/QD-TTg in 2020 (section II.10 Article 1) defines activities to support women with disabilities to encourage them to run for the National Assembly and the provincial People's Councils.

14. Solutions to increase the participation of organizations for women with disabilities include: (1) Communication, education, and advocacy to raise awareness of all levels, sectors, and communities; organizing activities to share experiences and connecting women in need to available services; (2) Improving the capacity of staff responsible for supporting women with disabilities; (3) Setting targets on female leadership in guiding documents.

Reply to paragraph 3 (c) of the list of issues

15. Steps taken include the promulgation of the Law on Prevention and Combat against Domestic Violence in 2022, the promulgation of Decree No. 103/2017/ND-CP regulating the establishment, organization, and operation of social assistance facilities tasked with urgently receiving and supporting victims of violence, abuse, and trafficking; and the promulgation of Decree No. 20/2021/ND-CP regulating the order and procedures for admission to social assistance facilities, levels of support and other benefits for them.

Reply to paragraph 3 (d) of the list of issues

16. Training measures are specified in the National Strategy on Gender Equality, the National Program on Prevention and Combat against Domestic Violence, and the Program on Prevention and Control of Human Trafficking. Decree No. 110/2024/ND-CP on social work regulates the standardization of social workers.

Reply to paragraph 3 (e) of the list of issues

17. National target programs on poverty reduction, new rural development, and support for ethnic minorities and mountainous areas all include components of gender equality communications. Viet Nam has approved a Communication Program on Gender Equality to 2030 (Decision No. 1790/QD-TTg in 2021), stipulating goals, tasks, solutions, and funding to change awareness of gender inequalities, especially regarding housework sharing and gender norms that disadvantage women and girls with disabilities.

Reply to paragraph 3 (f) of the list of issues

18. According to a report by the General Statistics Office, the Covid-19 epidemic affected the employment of women with disabilities more seriously than that of men. In the second quarter of 2020, the female labour force decreased by 4.9% compared to the previous quarter and by 5.5% compared to the same period of the previous year. In comparison, the decrease in the male labour force of the same age cohort was 3.9% compared to the previous quarter and 3.6% compared to the same period of the previous year, indicating that the decrease in the female labour force was higher.

19. Viet Nam adopted four policy packages to support Covid-19 victims and economic recovery in the aftermath of the epidemic (Resolution No. 68/NQ-CP dated July 1, 2021, Resolution No. 11/NQ-CP dated January 30, 2022, Resolution No. 43/2022/QH15 dated January 11, 2022 and Resolution No. 06/NQ-CP dated January 10, 2023) with a total support amount of about 350,000 billion VND (~13.75 billion USD), supporting nearly 68 million people. Forms of support include cash, medical treatment, vaccination, preferential credit loans, a value-added tax reduction by 2 percentage points, and a reduction in contributions to the social insurance fund and unemployment insurance fund by 1 percentage point and 0.5 percentage point, respectively, as well as deferred tax payment and land rent, etc.

Reply to paragraph 3 (g) of the list of issues

20. The National Strategy on Gender Equality (Resolution 28/NQ-CP in 2021), the National Program on Prevention and Combat against Domestic Violence (Decision 45/QD-TTg in 2021) and the Program on Prevention and Control of Human Trafficking (Decision 193/QD-TTg in 2021) stipulate the following measures: communication, human resource training; receiving, verifying, identifying, rescuing, protecting, and supporting victims; and allocating budgets at all levels for implementation (approximately 100 billion VND (~3.93 million USD) annually).

Article 7
Children with disabilities

Reply to paragraph 4 (a) of the list of issues

21. The Law on PWDs (Articles 5, 23 and 44), the Law on Education (Articles 11, 13, 15, 63) and the Law on Children (Article 10, 35) stipulate that children with disabilities are

entitled to support, social benefits, care, and special education for rehabilitation, self-learning development, and social integration. According to a survey in 2023, basically all children with disabilities have access to inclusive education at all levels. In order to strengthen the implementation of children's rights, especially children with disabilities, the Prime Minister issued Decision No. 27/QD-TTg dated January 3, 2025, approving the Plan to implement the recommendations of the UN Committee on the Rights of the Child based on the 5th and 6th national report of Viet Nam on the implementation of the Convention on the Rights of the Child (CRC), which includes enhancing the legal system, implementing policies and providing services to ensure the rights of children and resolve issues related to children and children with disabilities.

22. Decision No. 23/QD-TTg dated January 7, 2021, by the Prime Minister approved the National Action Program on Children for the period 2021-2030, setting the target: "The rate of schools with infrastructure and training materials suitable for students with disabilities will reach 55% by 2025 and 60% by 2030; the rate of children with learning needs who have access to specialized education, inclusive education, and appropriate rehabilitation support will reach 80% by 2025 and 90% by 2030".

Reply to paragraph 4 (b) of the list of issues

23. Viet Nam has developed a sign language system (Circular No. 17/2020/TT-BGDDT) and issued regulations on inclusive education in schools. There are centers to support the development of inclusive education (Circular No. 20/2022/TT-BGDDT). A number of specialized educational facilities are in place to ensure the right to meaningful participation of children with disabilities, especially those with hearing disabilities.

Reply to paragraph 4 (c) of the list of issues

24. Viet Nam has established the national child protection hotline 111 with 02 channels: A child protection call center and an anti-human trafficking call center.

25. In 2024, the child protection call center received 320,749 incoming calls, and 1,816 notifications were made on the call center's and Zalo’s applications. A total of 27,277 consultations and 1,243 interventions have been provided.

26. Among the total number of incoming calls in 2024 to the 111 call center, 1,920 were related to anti-human trafficking, including 1,319 calls providing general information and legal consultation; 537 calls for psychological consultation, policies, support services and interventions, and 65 referral cases to provide rescue and support for 75 victims and people at risk of being trafficked.

Article 8
Awareness raising

Reply to paragraph 5 (a) of the list of issues

27. Measures to ensure that PWDs are fully informed about their rights:

- Information about documents, programs, and projects on PWDs is updated and disseminated via mass communication, the internet, fan pages, Zalo, SMS, e-portals, training courses, leaflets, posters, Q&A handbooks, video clips, etc;
- Agencies at all central, provincial, district, and commune levels regularly disseminate information about relevant laws and policies in various forms.

Reply to paragraph 5 (b) of the list of issues

28. Data from the national population census and in-depth studies on PWDs are published in the mass media; relevant data and statistics on PWDs are shared in line with provisions of

the Law on Statistics. To date, in Viet Nam, over 90% of PWDs have access to awareness-raising activities on the rights of PWDs carried out by the state.[1]

Reply to paragraph 5 (c) of the list of issues

29. Almost 100% of state officials, teachers, social workers, and health service providers at all levels as well as organizations of PWDs have participated in training and communication programs to raise awareness of PWDs.[2]

Reply to paragraph 5 (d) of the list of issues

30. The Prime Minister has issued Plans to implement the United Nations Convention on the Rights of Persons with Disabilities (UNCRPD) (Decision No. 1100/QD-TTg in 2016), the Program to Support Persons with Disabilities (Decision No. 1190/QD-TTg in 2020), and Strengthening the Party's leadership in disability-related works (Directive No. 39/CT-TW in 2019). Ministries and provinces have issued their plans and allocated resources for implementation, with special priority given to rural, remote, and isolated areas.

Reply to paragraph 5 (e) of the list of issues

31. The four policy packages to support people during the Covid-19 pandemic (mentioned in Article 6, section 3, point f) all include a communication component.

Article 9
Accessibility

Reply to paragraph 6 (a) of the list of issues

32. Viet Nam has set a roadmap for the period 2026 - 2030 to promote accessibility for old and newly built public buildings in the Program to support PWDs (Section I.2, Article 1, Decision No.1190/QD-TTg in 2020): 100% of new constructions and 50% of old constructions ensure accessibility for PWDs; 50% of PWDs in need of participating in traffic can access means of transport that meet technical standards for accessible traffic or equivalent assistive services; traffic fares for 100% of PWDs are exempted or rebated according to regulations, especially traffic fares reduced by 60% for inter-provincial roads.

Reply to paragraph 6 (b) of the list of issues

33. Viet Nam has issued legal documents regulating standards and conditions for ensuring safety at public infrastructure facilities, such as the national technical standard on the construction of accessible buildings (Circular No.06/2024/TT-BXD); regulations on environmental conditions and facilities of social assistance institutions (Articles 23, 24 of Decree No.103/2017/ND-CP); and Circular No.33/2017/TT-BLDTBXH on care standards in social assistance institutions. Elevators, public facilities, and care centers are all equipped with electronic surveillance cameras; and there is a hotline to support women and children with disabilities.

Reply to paragraph 6 (c) of the list of issues

34. The 4G cellular network coverage rate in Viet Nam reached 99.8% of the population,[3] and over 90% of PWDs have smartphones, radios, and telecommunications networks. Viet Nam National Television (VTV) has provided sign language interpretation in its news programs; most websites have applied new features such as narrated videos, reading articles, enlarging fonts, changing content background colors, rating articles, sharing articles.... All libraries have accessible pages, news, and e-books for PWDs.

35. Viet Nam has set a roadmap to 2030 (Section I.2, Article 1, Decision No.1190/QD-TTg in 2020): the rate of PWDs accessing and using information technology and

[1] Source: reports by Ministries and provinces.
[2] Source: reports by Ministries and provinces.
[3] Source: Ministry of Information and Communication.

communication services is at least 1/3 of the national average rate;[4] (Section II.2.2 of Resolution No.42-NQ/TW in 2023): At least 75% of people in remote, border, and island areas, and 80% of communes in ethnic minority and mountainous areas enjoy and participate in cultural activities, listen to and watch national and local radio and television channels.

Reply to paragraph 6 (d) of the list of issues

36. Programmes to train, build capacity and raise awareness for participation in developing and monitoring the implementation of policies and laws for PWDs (Section II.12, Article 1, Decision No. 1190/QD-TTg in 2020).

37. Consultations during the legal document development process (the Law on Promulgation of Legislative Documents).

Reply to paragraph 6 (e) of the list of issues

38. Measures are taken to ensure that all persons with disabilities have adequate and effective access to information and policies related to them (Section II.7, Article 1, Decision No.1190/QD-TTg in 2020): (1) Develop and promulgate national technical standards and regulations on assistance for persons with disabilities; (2) Maintain, develop and upgrade electronic portals/websites supporting persons with disabilities; (3) Develop tools and produce documents for training persons with disabilities; (4) Develop online education and training systems and solutions for persons with disabilities; (5) Research and develop technologies to support persons with disabilities.[5]

Reply to paragraph 6 (f) of the list of issues

39. *During the COVID-19 pandemic, various measures were taken in Viet Nam to ensure accessibility for PWDs, including:* (1) Developing and implementing policies to provide financial, and material support for daily living, vaccination etc. (2) Disseminating policies through SMS via telecommunications networks, radio, television, residential groups, loudspeakers, social networks, etc. (3) Monitoring and examining through the National Assembly's and People's Councils' oversight activities and administrative agencies (supervise, examine) (4) Receiving and addressing citizens' feedback through complaint and denunciation mechanisms.

Reply to paragraph 6 (g) of the list of issues

40. In Viet Nam, there are hotlines and newspapers for individuals to provide feedback and make recommendations; e-portals of the Government, ministries, and localities include sections for citizens to give opinions and make complaints and denunciations.

Article 10
Right to life

Reply to paragraph 7 of the list of issues

41. The Criminal Code (Article 21) stipulates that a person who commits a socially dangerous act while suffering from a mental illness or another disease that causes loss of cognitive ability or ability to control his/her behavior shall not be held criminally responsible and shall not be subject to any penalties, including the death penalty.

42. The Criminal Procedure Code (Articles 76 and 133) stipulates that a person with physical or psychosocial disabilities shall receive support with judicial measures during the proceedings, such as being assigned a defense attorney and assistance in the record-making process, etc.

[4] Decision No. 1190/QD-TTg in 2020.
[5] Decision No.1190/QĐ-TTg in 2020.

Article 11
Situations of risk and humanitarian emergencies

Reply to paragraph 8 (a) of the list of issues

43. Measures taken to ensure inclusion and consultation with all PWDs and local organizations of PWDs on risk situations and emergencies (Chapter III of Decree No.20/2021/ND-CP): (1) Support with cash, food and necessities from the state budget and social mobilization; (2) Support for medical treatment costs for severely-injured people; (3) Support for housing construction and repair; (4) Emergency support for children when their parents die or go missing; (5) Support for job creation and production development; (6) A hotline to listen to and respond to people's feedback.

Reply to paragraph 8 (b) of the list of issues

44. Results show that 100% of households severely affected by natural disasters and risks are promptly assisted as regulated. Annually, the state budget allocates approximately 35,000 billion VND (~1.38 billion USD) for monthly subsidy policies for over 1.6 million PWDs, and nearly 350,000 households caring for or nurturing PWDs in the community; mobilizing about 10,000 billion VND/year (around 393 million USD/year) from the Viet Nam Fatherland Front for the elimination of temporary and dilapidated houses, and supporting the restoration of houses affected by natural disasters. In 2024, the Government of Viet Nam launched a nationwide program to eliminate temporary and dilapidated houses, constructing and handing over 84,888 houses. This is a significantly humane program, demonstrating the responsibility of the Party and State towards the poor and people in especially difficult circumstances. The goal in 2025 is to focus on building and repairing about 230,000 temporary and dilapidated houses.

Reply to paragraph 8 (c) of the list of issues

45. Viet Nam has adopted the Law on Natural Disaster Prevention and Control, Decree 20/2021/ND-CP regulating emergency social assistance policies; Program to support PWDs for the period 2021 - 2030 (Decision No.1190/QD-TTg in 2020); National Comprehensive Program on Natural Disaster Prevention and Control (Decision No.1651/QD-TTg in 2022); Project on Raising Community Awareness and Community-Based Disaster Risk Management, by 2030 (Decision No.553/QD-TTg in 2021).

Reply to paragraphs 8 (d) and (e) of the list of issues

46. *Answer to items (d) and (e):* Viet Nam's 04 policy packages have supported people and enterprises affected by the Covid-19 pandemic, of which those supporting PWDs as follows:

- Support of VND 500,000(~20 USD)/person/month x 3 months for over 2.7 million people with severe and very severe disabilities, regardless of religion, ethnicity, or gender (Resolution No. 42/NQ-CP in 2020; amended and supplemented by Resolution No. 154/NQ-CP);
- Provision of free medical examination, treatment, testing, and vaccination for all people with disabilities (approx. 7 million people);
- Provision of cash support of VND 1,000,000(~40 USD)/person/month for 3 months for PWDs who lost their jobs.

Article 12
Equal recognition before the law

Reply to paragraph 9 (a) of the list of issues

47. The 2008 Law on Cadres and Civil Servants and the 2010 Law on Public Employees stipulate that local cadres, civil servants and public employees must properly perform their assigned duties and tasks; and enhance their capacity according to Decision No.1190/QD-

TTg in 2020. The Law on Persons with Disabilities (Article 4, 5) stipulates that PWDs are guaranteed equal participation rights in social activities; the State has policies to support persons with disabilities in such fields as social assistance, training, and supporting persons with disabilities in socio-economic development; creating conditions for organizations of and for persons with disabilities to operate; remuneration and handling violations.

Reply to paragraph 9 (b) of the list of issues

48. The Law on Legal Aid stipulates measures to support PWDs in exercising their legal capacity, including: (1) Legal advice; (2) Participation in litigation, out-of-court representation being supported by the State without having to pay for lawyers in cases (the State exempts 100% for PWDs); (3) Issuing guiding documents for Legal Aid Centers to strengthen legal aid for PWDs; Point 8, Section 2 of Decision No. 1190/QD-TTg in 2020 stipulates solutions to strengthen legal aid for PWDs, including women and girls with disabilities. Decree No.110/2024/ND-CP includes provisions on supporting the legal capacity building of women and girls with disabilities in the judicial process.

Reply to paragraph 9 (c) of the list of issues

49. Decree No.110/2024/ND-CP has been adopted, which stipulates on the development of social work in the judicial system and supporting PWDs. The last resort, for those who are mentally ill and have lost their capacity for civil acts as declared by the Court, is to have the transactions made through a legal representative.

Reply to paragraph 9 (d) of the list of issues

50. These measures include: (1) Development of social work in the judicial system as prescribed in Decree No.110/2024/ND-CP; (2) Legal advice and assistance; (3) Participation in legal proceedings, including regulations on lawyers; (4) Non-procedure representation; (5) Building the model of "Friendly Investigation Room"; (6) Training of trainers and organizations of PWDs.[6]

Reply to paragraph 9 (e) of the list of issues

51. PWDs are among those being given priority in accessing social policy credit as stipulated in Decree No.61/2015/ND-CP (amended and supplemented several articles of Decree No.74/2019/ND-CP) on employment support policies and the National Employment Fund; PWDs can borrow loans with a 50% interest rate reduction and if the loan is less than 100 million VND (~3900 USD), they do not have to mortgage assets.

52. In reality, many PWDs own or inherit properties, and access preferential loans provided by the social policy bank; up to now it is estimated that about 136,928 PWDs have received preferential loans.

Article 13
Access to Justice

Reply to paragraph 10 (a) of the list of issues

53. Vietnamese laws and regulations (such as the Law on Legal Aid, Resolution No. 33/2021/QH13, Ordinance No. 01/2022/UBTVQH15, Circular No. 43/2021/TT-BCA, Decree No. 110/2024/ND-CP, etc.) include measures to ensure that PWDs, including women and girls with disabilities, have access to justice, including:

- PWDs facing financial difficulties are exempted from fees, and those with language difficulties are provided with interpretation support;

[6] Vietnamese PWDs receive legal aid in those matters related to their legal rights and interests through 63 Legal Aid Centers in 63 provinces and cities, 199 Branches at the district level, and 4,345 Legal Aid Clubs at the commune level.

- Legal information dissemination and education; training and capacity building for PWDs and judicial officers;
- Inclusion of legal support for PWDs in training programs at universities;
- Development of collaboration programs among agencies and organizations to support PWDs;
- Establishment of "friendly investigation rooms" at units and localities;
- Strengthening the monitoring and evaluation of legal compliance.

Reply to paragraph 10 (b) of the list of issues

54. Annually, the Supreme People's Court and the Supreme People's Procuracy organize training for thousands of judicial officers working with PWDs. The Ministry of Public Security and the Ministry of Justice regularly organize capacity-building training for judicial officers working with PWDs as stipulated in Decision No.112/QD-TTg in 2021 and Decision No. 1929/QD-TTg in 2020.

Reply to paragraph 10 (c) of the list of issues

55. Measures to support and promote access to the legal profession for PWDs include: (1) Tuition fee exemptions and reductions, study cost support, and scholarships; (2) Exemptions and reductions of certain physical education subjects depending on the type of disability; (3) Providing incentive points during enrollment; (4) Providing online exams or separate exam rooms depending on the type and level of disability; allowing the use of personal computers for exams; (5) Facilitating the registration of PWD internships and admission to the Bar Association; law practice organizations accepting PWDs for internships and practice at their organizations.

56. In reality, in Viet Nam, there are lawyers and law students with disabilities (estimated at 7-10% of law students), but statistical data does not fully reflect this.

Article 14
Liberty and security of the person

Reply to paragraph 11 (a) of the list of issues

57. In Viet Nam, citizens' rights to freedom and equality are constitutional principles. The Constitution (Article 16) states that everyone is equal before the law and no one shall be discriminated against. Chapter II of the Constitution is dedicated to outlining human rights and citizens' rights, including the rights to personal autonomy, freedom of movement and residence. Article 38 of the Constitution also strictly prohibits acts that threaten the life and health of others. The 2023 Law on Medical Examination and Treatment prohibits the intentional forced treatment of individuals who do not fall under mandatory treatment cases. The Law on Persons with Disabilities, along with Decree 103/2017/ND-CP (Chapter V) and Decree 20/2021/ND-CP (Chapter V), includes detailed regulations on the authority and procedures to admit to social assistance facilities for individuals with severe and particularly severe mental disabilities who lack shelter and are incompetent of daily activities.

Reply to paragraph 11 (b) of the list of issues

58. Capacity development to establish non-coercive, voluntary, and community-based mental health support services has been stipulated in Decision No. 1929/QD-TTg in 2020, Decision No. 112/QD-TTg in 2021, and Decree No. 110/2024/ND-CP on social work. Support mechanisms and services in line with these documents have been seriously implemented by central and local agencies. In addition, legal documents regarding these mechanisms and services are periodically reviewed for timely amendments and supplements to address the reality of non-coercive, voluntary, and community-based mental health support.

Article 15
Freedom from Torture, Cruel, Inhuman or Degrading Treatment or Punishment

Reply to paragraph 12 of the list of issues

59. The Constitution of Viet Nam (Articles 19, 20), the Civil Code (Article 35), the Law on Donation, Removal, and Transplantation of Human Tissues and Organs and Donation and Recovery of Cadavers (Article 12) stipulate that everyone has the right to bodily integrity, with their health, honour, and dignity protected by laws; they shall not to be subject to torture, violence, coercion, corporal punishment, or any other form of treatment that violates their bodily integrity, health, honour, and dignity. The donation, removal, and transplantation of human tissues and organs, and medical, pharmaceutical, and scientific experiments without their consent are prohibited. Violations will be prosecuted under the Criminal Code or administratively handled under the Law on Handling Administrative Violations.

Article 16
Freedom from Exploitation, Violence, and Abuse

Reply to paragraph 13 (a) of the list of issues

60. The Law on Prevention and Combat of Human Trafficking, the Law on Prevention and Combat against Domestic Violence, the Law on Gender Equality, and the Law on Children prohibit acts of manipulation, incitement, or coercion against PWDs, including sexual assault, violence, abuse, exploitation, and trafficking of children and women with disabilities. The National Gender Equality Program and the Human Trafficking Prevention Program have appropriate solutions for prevention, intervention, support for victims, and capacity building for officers and staff.

Reply to paragraphs 13 (b) and (c) of the list of issues

61. The Law on Prevention and Combat of Human Trafficking, the National Program on Domestic Violence Prevention and Control (Decision No. 45/QD-TTg in 2022), and the Program on Prevention of Human Trafficking (Decision No. 193/QD-TTg in 2021) include measures to protect women and girls with disabilities from any form of gender-based violence, including communication, awareness-raising, capacity building for social workers, disability associations, etc.; development of support and intervention procedures for cases of exploitation, violence, and abuse; investigation, prosecution, and adjudication procedures for cases of exploitation, violence, and abuse; implementing regulations on coordination among agencies; establishing hotlines and helplines to receive reports and complaints; providing psychological, legal, policy advice, and connecting support services. "Trusted homes" and "safety shelters" have been established to support victims of domestic violence, as well as "houses of purpose" and "peaceful homes" to support women and children returning from trafficking.

62. In 2023, 248 people were received and verified; 162 were identified as trafficking victims, and 169 were supported (including victims returning from previous years and suspected victims, with no specific data on PWDs). Based on the needs and aspirations of the victims, the authorities safeguarded 141 people, supported essential needs for 140 people, covered travel cost for 133 people, provided medical needs for 85, psychological support for 113, legal aid for 50, and assisted 9 victims in overcoming early difficulties as stipulated by law.

Article 17
Protecting Personal Integrity

Reply to paragraph 14 (a) of the list of issues

63. Viet Nam has enacted the Law on Donation, Removal, and Transplantation of Human Tissues and Organs and Donation and Recovery of Cadavers, the Criminal Code, the Civil

Code, and the Law on Handling Administrative Violations, which prohibit biomedical research and medical services without the voluntary consent of PWDs.

Reply to paragraph 14 (b) of the list of issues

64. The Criminal Code, the Civil Code, and the Law on Medical Examination and Treatment prohibit forced or coerced sterilization and abortion of women and girls with disabilities. Violations will be prosecuted under the Criminal Code (Articles 315, 316).

Article 18
Freedom of Movement and Nationality

Reply to paragraph 15 of the list of issues

65. The Constitution of Viet Nam (Article 23), the Law on PWDs (Article 4), and the Law on Residence in 2020 affirm that citizens have the right to freedom of movement and residence, immigration, and birth registration. Violations will be criminally prosecuted under the Criminal Code (Articles 157, 158).

Article 19
Living Independently and Being Included in the Community

Reply to paragraph 16 (a) of the list of issues

66. Viet Nam has adopted the Law on PWDs (Article 5), Decree No. 20/2021/ND-CP, the Program to Support PWDs (Decision No. 1190/QD-TTg in 2020), and has allocated budget for operating and developing independent living programs in the community for PWDs.

67. Viet Nam annually allocates approximately 35,000 billion VND (~1.38 billion USD) to support over 1.6 million persons with severe and very severe disabilities and nearly 350,000 families and individuals caring for persons of very severe disabilities and children with disabilities.

Reply to paragraph 16 (b) of the list of issues

68. Viet Nam has adopted Decree No. 110/2024/ND-CP dated 30 August 2024 on social work and Decision No. 112/QD-TTg in 2021 on the Social Work Development Programme.

Reply to paragraph 16 (c) of the list of issues

69. The satisfaction level of the population with the provision of public administrative services is 82.9%, with some places reaching 99%.

Reply to paragraph 16 (d) of the list of issues

70. The Law on PWDs (Articles 5, 6), the Program to Support PWDs (Section II.11, Article 1, Decision No. 1190/QD-TTg in 2020), Decision 112/QD-TTg in 2021, Decree 110/2024/ND-CP, and Decree 20/2021/ND-CP stipulate on measures to support independent living services and other social and health care services to support the inclusion and participation of all PWDs.

Article 20
Personal Mobility

Reply to paragraph 17 (a) of the list of issues

71. The Law on Road (Articles 28, 58, 59), the Law on Road Traffic Order and Safety (Articles 4, 11, 12, 14, 23, 30, 33, 44, 57), the Law on PWDs (Articles 5, 6), and the Program to Support PWDs (Section II.6, Article 1, Decision 1190/QD-TTg in 2020) stipulate measures and solutions to facilitate the personal mobility of PWDs, including:

- Development of plans and roadmaps to upgrade infrastructure and invest in supportive devices for PWDs;
- Directing localities to ensure accessibility for PWDs when executing building works; prioritizing and supporting PWDs in purchasing tickets and completing the procedures; arranging seats and handling luggage for them;
- Exemptions and reductions of ticket and service prices, free transportation of specialized assistive devices for PWDs;
- Developing universal accessibility transportation criteria;
- Enhancing monitoring and evaluation of the implementation of regulations on traffic works.

Reply to paragraph 17 (b) of the list of issues

72. The Law on Road Traffic Order and Safety (approximately 40 related articles), the Civil Aviation Law, the Railway Law, and the Program to Support PWDs (Section II.7, Article 1, Decision No. 1190/QD-TTg in 2020) specify measures to use existing science and technology to effectively support PWDs, ensuring their access to transportation. Currently, software for finding bus stops, booking flights online, maps with voice guidance, and online ticket selling are available in Viet Nam. Signal support devices, tactile paving, and Braille in public areas (elevators, traffic lights, train stations, bus stops, wharves, airports, waterways ports, streets) are also available in Viet Nam.

Reply to paragraph 17 (c) of the list of issues

73. The Law on Persons with Disabilities (Articles 5, 6), and the Program to Support Persons with Disabilities (Section II.7, Article 1, Decision No. 1190/QD-TTg in 2020) stipulate measures to use existing science and technology to effectively support persons with disabilities to ensure their access to transportation. Currently, software for finding bus stops, booking flights online, maps with voice guidance, and online tickets selling are available in Viet nam. Signal support devices, tactile paving, Braille in public areas (elevators, traffic lights, train stations, bus stops, wharves, airports, waterway ports, streets) are also available in Viet Nam; smart shoe devices to support the movement and travel of visually impaired people have been produced, etc.

Reply to paragraph 17 (d) of the list of issues

74. The Law on PWDs (Articles 5, 26) and the Program to Support PWDs (Section II.12, Article 1, Decision No. 1190/QD-TTg in 2020) stipulate measures for training on the provision and use of assistive devices and technology for PWDs and their representative organizations. Viet Nam has assessed the need for assistive devices and technologies for PWDs; developed documents and organized training; detected, screened, and advised on the usage; preserved, maintained, and repaired assistive devices for PWDs; researched and developed standards to guide the accessibility and use of information available on websites.

Reply to paragraph 17 (e) of the list of issues

75. According to the Law on Road Traffic Order and Safety, all citizens, regardless of disability, are equal in participating in training and testing for a driving license if qualified. Viet Nam does not have exact statistics, but it is estimated that about 7-10% of the approximately 34.7 million driving licenses are owned by PWDs.

Reply to paragraph 17 (f) of the list of issues

76. Circular No. 35/2024/TT-BGTVT (Articles 12 and 26) provides specific regulations on training, testing, and granting driving licenses for PWDs. PWDs can choose the form of training and taking driving lessons on the practice car instead of in the learning cabin. Regulations on the content, process, and form of testing for PWDs, etc are also available.

Reply to paragraph 17 (g) of the list of issues

77. Decree No. 28/2012/ND-CP (Article 6) stipulates measures to support funding, provide loans with preferential interest rates; tax exemption and reduction for the production and import of equipment to encourage enterprises to manufacture mobility support devices and technology for PWDs.

Article 21
Freedom of expression and opinion, and access to information

Reply to paragraph 18 (a) of the list of issues

78. The Law on Access to Information 2016 (Articles 3, 4, 18, 24and 35) stipulates the right to equal access to information for all citizens and measures to ensure that all PWDs can access information in a timely and quality manner without additional costs. This includes providing appropriate forms and equipment for information dissemination; arranging support for equipment and civil servants; applying standards and technology; and strictly addressing acts that restrict the right of PWDs to access information.

Reply to paragraph 18 (b) of the list of issues

79. The Law on Access to Information 2016 (Articles 3, 18, 24 and 35) and Circular No. 26/2020/TT-BTTTT stipulate measures to support persons with disabilities to adequately and effectively access information from the community, including (1) Developing and promulgating standards and regulations; (2) Developing, upgrading websites to support PWDs, such as text resizing, background colour change; articles reading, rating and sharing...; (3) Developing production tools, training materials, websites, and libraries accessible to PWDs.

Reply to paragraph 18 (c) of the list of issues

80. Viet Nam has issued National Standards on Braille for PWDs (Circular No. 15/2019/TT-BGDDT); and National Standards on Sign Language and Braille for PWDs (Circular No. 17/2020/TT-BGDDT) to increase opportunities for people with hearing disabilities and people using alternative communication methods to access information fully and effectively; converting textbooks into sign language and Braille and assigning Viet Nam Television to increase the broadcast time for television programs using sign language interpretation.

Reply to paragraph 18 (d) of the list of issues

81. According to the Law on Persons with Disabilities (Articles 5, 19) and Decree No. 126/2024/ND-CP (Articles 23, 24), organizations of persons with disabilities exercise their rights to freedom of expression and association through the implementation of the rights, obligations, and responsibilities of the Association as prescribed in Articles 23 and 24 of this Decree.

Article 22
Respect for privacy

Reply to paragraph 19 of the list of issues

82. The Law on Persons with Disabilities (Clause 4, Article 14) prohibits the misuse of assets, personal images and information and conditions of persons with disabilities for personal benefit or illegal acts. Violations will be subject to criminal prosecution under the provisions of the Criminal Code (Point k, Clause 1, Article 52, Article 185) or administrative sanctions under the provisions of Clauses 3 and 4, Article 11 of Decree 130/2021/ND-CP.

Article 23
Respect for home and the family

Reply to paragraph 20 (a) of the list of issues

83. The Civil Code (Articles 36, 39), the Law on Marriage and Family, the Law on People's Health Care, and the Law on Persons with Disabilities (Point d Clause 1Article 4, Clause 6 Article 14) stipulate that persons with disabilities have the right to health care, marriage, gender reassignment and that obstructing the rights of persons with disabilities to get married and have children are prohibited. Violations will be subject to criminal prosecution (Article 52 of the Criminal Code) or administrative sanctions (Article 11 of Decree 130/2021/ND-CP, Decree 117/2020/ND-CP).

Reply to paragraph 20 (b) of the list of issues

84. The Law on Medical Examination and Treatment No. 15/2023/QH15 stipulates:

"Article 3:

1. "Equality, fairness and non-discrimination against patients"

Article 10:

3. "Not to be discriminated, mistreated, physically abused, sexually abused during medical examination and treatment";

4. "Not to be forced to undergo medical examination and treatment, except in cases of compulsory treatment prescribed in Clause 1, Article 82 of this Law.".

Reply to paragraph 20 (c) of the list of issues

85. Law on Persons with Disabilities (Article 5), Decree No. 20/2021/ND-CP (Chapter IV) stipulates policies to support the care of people with severe and very severe disabilities.

Reply to paragraph 20 (d) of the list of issues

86. Measures to promote the implementation of the rights of women with disabilities, especially the right to inheritance, marriage and childbirth are stipulated in the Constitution (Articles 32 and 36), the Civil Code, the Law on Persons with Disabilities; with strict enforcement against violations under the Criminal Code and the Law on Handling of Administrative Violations.

Article 24
Education

Reply to paragraph 21 (a) of the list of issues

87. The Education Law (Article 63) stipulates that the state prioritizes the allocation of teachers, infrastructure, equipment, and budget to support children with disabilities in inclusive education, along with training programs for teachers on inclusive education for persons with disabilities (Decision 3457/QD-BGDĐT). In 2024, Viet Nam spent over VND 380,000 billion (~14.93 billion USD) for education and training, including ensuring expenditures for students with disabilities.

Reply to paragraph 21 (b) of the list of issues

88. The Education Law and the Law on Persons with Disabilities (Chapter 4) essentially ensure access to inclusive education for 2.1 million students with disabilities. Additional information on textbooks, materials, and equipment includes: (1) Converting textbooks into Braille editions for educational institutions teaching visually impaired persons; (2) Developing 100 instructional videos for the Vietnamese language and 50 instructional videos for mathematics for schools and hearing-impaired students during teaching and learning processes. (3) Establishing support centres for inclusive education nationwide.

Reply to paragraph 21 (c) of the list of issues

89. 100% of schools in Viet Nam admit children with disabilities for inclusive education and have suitable adjustments to meet the specific educational needs of each student with disabilities.

90. In the upcoming period, Viet Nam will well implement the Law on Planning, Law on Education, Law on PWDs, Education Development Strategy (Decision No. 1705/QD-TTg in 2024), and Vocational Education and Training Institutions Network Planning for the period 2021-2030, with a vision to 2045 (Decision No. 73/QD-TTg), which includes solutions to enhance access to education for students with disabilities.

Reply to paragraph 21 (d) of the list of issues

91. In the coming time, Viet Nam will continue well implementing the Law on Persons with Disabilities, the Law on Education; Decision No. 73/QD-TTg in 2023, which approves the vocational education and training institutions network planning for the period 2021-2030, with a vision to 2045 and the provincial schools network planning, ensuring access to education for pupils, undergraduate students with disabilities.

Reply to paragraph 21 (e) of the list of issues

92. Viet Nam currently has 1.251 million preschool and general education teachers, of which about 7% are persons with disabilities. Every teacher training institution nationwide has a Special Education Faculty for training and capacity building for teachers delivering inclusive education.

Reply to paragraph 21 (f) of the list of issues

93. The plan in Decision No. 1190/QD-TTg of the Prime Minister approving the Program to support persons with disabilities for period 2021 - 2030, the Law on Persons with Disabilities, Decision No. 112/QD-TTg of the Prime Minister promulgating the Social Work Development Program for period 2021-2030.

Reply to paragraph 21 (g) of the list of issues

94. The plan in Decision No. 112/QD-TTg of the Prime Minister promulgating the Social Work Development Program for period 2021-2030 and Decree No. 110/2024/ND-CP.

Reply to paragraph 21 (h) of the list of issues

95. To well implement the Education Development Strategy by 2030, with a vision to 2045 according to Decision No. 1705/QD-TTg.

Reply to paragraph 21 (i) of the list of issues

96. To well implement the goals and 24 targets in Decision No. 23/QD-TTg in 2021 approving the National Action Program for the Children for period 2021-2030: Ensuring the exercise of children's rights, comprehensive child development to meet the requirements for building quality human resources for socio-economic development and international integration; establishing a safe, healthy and friendly living environment, contributing to achieving the goals of 2030 Agenda for Sustainable Development.

Article 25
Health

Reply to paragraph 22 (a) of the list of issues

97. To well implement Decision No. 89/QD-TTg in 2024 on the National Strategy for Protecting, Caring for, and Improving People's Health by 2030, with a Vision to 2045 and the Law on Medical Examination and Treatment (Articles 14 and 19), which enhance capacity and ensure effective access to health care services for persons with disabilities at central, provincial, district and commune health facilities.

Reply to paragraph 22 (b) of the list of issues

98. Viet Nam has promulgated the Law on Health Insurance, the Law on Medical Examination and Treatment and Law on Pharmacy; Rehabilitation System Development Program (Decision No. 569/QD-TTg period 2023-2030), National Strategy on Nutrition (Decision No. 02/QD-TTg in 2022), National Plan on Prevention and Control of Non-Infectious Diseases and Mental Health Disorders (Decision No. 155/QD-TTg in 2022), Program for Combining Military and Civilian Medical Staff to Take Care of People's Health (Decision No. 545/QD-TTg in 2022), National Strategy on Protection, Care and Improvement of People's Health (Decision No. 89/QD0TTg in 2024); Program to Support Persons with Disabilities period 2021-2030 (Decision No, 1190/QD-TTg in 2020), Resolution No. 20-NQ/TW in 2017 on Strengthening the Protection, Care and Improvement of People's Health in the new situation.

Reply to paragraph 22 (c) of the list of issues

99. Decision No. 1190/QD-TTg in 2020 of the Prime Minister approving the Program to Support Persons with Disabilities for the period 2021 - 2030 has a component related to implementing measures related to health care and prevention for persons with disabilities that meet all the needs of persons with disabilities is prioritized, and free vaccination is delivered.

Reply to paragraph 22 (d) of the list of issues

100. Viet Nam has issued the National Strategy for Protection, Care and Improvement of People's Health by 2030, with a Vision to 2045 (Decision No. 89/QD-TTg in 2024), Plan to implement the Viet Nam Health Program (Decision No. 5924/QD-BYT in 2021), the Law on Medical Examination and Treatment 2023, the Law on Health Insurance (revised in 2024), and Rehabilitation System Development Program (Decision No. 569/QD-TTg in 2023) that stipulate measures to ensure persons with disabilities' access to high-quality, accessible, and affordable health services, including: Expanding health insurance coverage; Implementing a community-based rehabilitation program; Providing special health services that persons with disabilities need; Providing health services as close to the community as possible, including in rural areas; Training and promoting medical ethics standards for public and private health facilities.

Reply to paragraph 22 (e) of the list of issues

101. Provisions regulating this matter are set forth in the Law on Complaints (Articles 7 and 12), the Law on Denunciation (Articles 6 and 8), and the Law on Persons with Disabilities (Articles 35 and 37).

Reply to paragraph 22 (f) of the list of issues

102. Provisions regulating this matter are set forth in the National Strategy for Protection, Care, and Improvement of People's Health by 2030, with a Vision to 2045 (Decision No. 89/QD-TTg in 2024) and Decision No. 5924/QD-TTg in 2021 approving the Plan to implement the Viet Nam Health Program for the period 2021-2025.

Reply to paragraph 22 (g) of the list of issues

103. Viet Nam has over 35,000 employees working in the public health system, an estimated of 7% of whom are persons with disabilities.

Article 26
Habilitation and rehabilitation

Reply to paragraph 23 (a) of the list of issues

104. The Law on Medical Examination and Treatment (Article 68), the Law on Persons with Disabilities (Article 31), Decree No. 28/2012/ND-CP (Article 10) and Circular No. 10/2018/TT-BLDTBXH (Article 5) stipulate necessary rehabilitation services for persons

with disabilities to help them improve or maintain their abilities, aiding them to integrate into the community and exercise their rights.

Reply to paragraph 23 (b) of the list of issues

105. Nearly 100% of persons with disabilities in Viet Nam who are able to access can possess assistive devices thanks to the support from individuals, families, the State, and the community.

Article 27
Work and employment

Reply to paragraph 24 (a) of the list of issues

106. Please refer to Article 6, Clause 3, point f for policies on technical and financial support for enterprises run by persons with disabilities, in particular those recovering after the COVID-19 pandemic, and plans to establish a specific support mechanism for enterprises of persons with disabilities.

Reply to paragraph 24 (b) of the list of issues

107. In 2023, the rate of persons with disabilities participating in the labour force was 23.9%, with the working-age population rate at 23.5%.

Reply to paragraph 24 (c) of the list of issues

108. The Law on Public Investment (Article 4), the Law on Education (Article 17), the Law on Vocational Education (Articles 6, 27, 58 and 62), the Law on Persons with Disabilities, the Vocational Education and Training Institutions Network Planning (Decision No. 73/QD-TTg in 2023) stipulate policies on investment in facilities and training programs to ensure accessibility for persons with disabilities. The Strategy for Vocational Education Development (Decision No. 2239/QD-TTg in 2021) stipulates the modernization of facilities and equipment and the innovation of training programs and methods and aims for 40% of workers with disabilities capable of working to receive appropriate vocational training by 2030. The Program to Support Persons with Disabilities (Decision No. 1190/QD-TTg in 2020) targets 300,000 persons with disabilities in difficult circumstances receiving vocational training and job creation support for the period 2026-2030; supports investment in facilities and equipment for 6 specialized vocational training facilities to provide vocational training for persons with disabilities in 6 regions across the country and vocational training facilities to provide vocational training for persons with disabilities.

Reply to paragraph 24 (d) of the list of issues

109. The Law on Employment (Chapter 2) stipulates preferential credit policies for job creation and support for job transition for workers with disabilities in rural areas, including job transition support, vocational training support, loan assistance, provision of information on product markets, tax exemptions and reductions for enterprises, cooperatives, and business households creating jobs for persons with disabilities.

Reply to paragraph 24 (e) of the list of issues

110. The Law on Persons with Disabilities, the Labour Code, Decree No. 145/2020/ND-CP stipulate rights of equality and non-discrimination against persons with disabilities in recruitment and employment, and handling of violations. Enforcement measures include strengthening propaganda, dissemination, raising awareness, and ensuring compliance with laws among people and businesses, as well as enhancing legal aid activities, inspection, examination, and handling of violations of law.

Reply to paragraph 24 (f) of the list of issues

111. Please refer to Article 9, Section 6 (b) for the provision of safeguarding policies for all persons with disabilities in the workplace.

Article 28
Adequate standard of living and social protection

Reply to paragraph 25 (a) of the list of issues

112. Data on persons with disabilities accessing social protection programmes have been provided at Article 19, Section 16 (a). Of which:

Tagert	*Number of persons*
Total:	1.612.783
Persons with very severe disabilities	*357.069*
Under 16 years old	*38.437*
From 16 to 60 years old	*157.266*
60 years old or older	*161.366*
Persons with severe disabilities	*1.255.714*
Under 16 years old	*102.524*
From 16 to 60 years old	*684.097*
60 years old or older	*469.093*

113. Of which, 100% of persons with disabilities from ethnic minority groups and the Khmer people are benefitting monthly and ad hoc social allowances and assistance according to Decree No. 20/2021/ND-CP and Law on Health Insurance.

Reply to paragraph 25 (b) of the list of issues

114. The Law on Persons with Disabilities (Article 5), Decree No. 20/2020/ND-CP, the Program to Support Persons with Disabilities (Decision No. 1190/QD-TTg in 2020), and the National Target Program for Socio-Economic Development of Ethnic Minority Areas (Decision No. 1719/QD-TTg in 2021) have policies and budget allocations to ensure all PWDs, including ethnic minorities with disabilities, have access to adequate living standards and social protection.

Article 29
Participation in public and political life

Reply to paragraph 26 (a) of the list of issues

115. Viet Nam’s Constitution (Articles 16 and 27) and the Law on Election of Deputies to the National Assembly and People's Councils stipulate that persons with disabilities have the same right to vote and run for election as persons without disabilities. Violations of the right to vote and run for election will be handled according to Article 16 of the Criminal Code.

Reply to paragraph 26 (b) of the list of issues

116. The Law on Referendum (Articles 30 and 39) stipulates measures to support persons with disabilities in referendums, including caring facilities for persons with disabilities can establish separate voting areas; if persons with disabilities cannot go to the voting station, the Referendum Team will bring an additional ballot box and referendum ballot to the voter's residence or medical treatment place; if voters are unable to vote themselves due to disability, they can ask someone else to put the ballot in the ballot box.

Reply to paragraph 26 (c) of the list of issues

117. The Law on Election of Deputies to the National Assembly and People's Councils (Article 11, Clause 3. Article 69, Clauses 3 and 4) stipulates that accessibility standards are established and applied, including: Voting places must be suitable and convenient for voters to come and vote; caring facilities for the persons with disabilities can establish separate

voting areas; if persons with disabilities cannot go to the voting station, the Referendum Team will bring an additional ballot box and referendum ballot to the voter's residence or medical treatment place; if voters are unable to vote themselves due to disability, they can ask someone else to put the ballot in the ballot box.

Reply to paragraph 26 (d) of the list of issues

118. Guidance on professional work on the election of deputies to the National Assembly and People's Council (Circular No. 01/2021/TT-BNV) stipulates requirements for data collection on the number and proportion of persons with disabilities registered to vote and exercising the right to vote, including: Reviewing and making a list of voters with disabilities; Checking the number of ballots issued and collected; and reporting election results.

Article 30
Participation in cultural life, recreation, leisure and sport

Reply to paragraph 27 (a) of the list of issues

119. The Law on Physical Training and Sports (Articles 11, 13, 14 and 60) stipulates that the State creates conditions for persons with disabilities to participate in sports activities; ensuring facilities and policies for athletes with disabilities to train and compete in national and international sports tournaments; encourages organizations and individuals to support persons with disabilities to participate in sports activities, and sports facilities must be designed appropriately to accommodate the participation of persons with disabilities.

120. The Program to Support Persons with Disabilities (Section I.2.b, Article 1, Decision No. 1190/QD-TTg) aims for at least 70% of provinces and cities to have accessible exercise and sports clubs for persons with disabilities, attracting 15% of persons with disabilities to participate by 2030.

Reply to paragraph 27 (b) of the list of issues

121. The Law on Persons with Disabilities (Chapter VI), the Program to Support Persons with Disabilities (Section II.9, Article 1, Decision No. 1190/QD-TTg in 2020) stipulates the assurance for participation and access of persons with disabilities to entertainment areas, cultural areas, and sports areas, including:

- Exemptions and reductions of ticket and service prices;
- Enterprises are responsible for ensuring access for persons with disabilities (e.g. paths, entrances, toilets for persons with disabilities, bedrooms, etc.);
- Support for the design, manufacture, and production of tools and equipment for cultural, sports, recreational, entertainment, and tourism activities suitable for persons with disabilities;
- Establishing and developing a system of physical training and sports clubs for persons with disabilities;
- Developing 15 sports for persons with disabilities to train and compete;
- Enhancing the application of information technology;
- Developing standards and policies for persons with disabilities to participate in sports competitions; providing professional training for referees, coaches, doctors examining and classifying injuries, and athletes participating in tournaments; providing professional training for specialized instructors on skills and methods to support persons with disabilities.
- Strengthening activities of legal aid, inspection, examination, and handling of violations of law.

C. Specific obligations (Articles 31 to 33)

Article 31
Statistics and data collection

Reply to paragraph 28 (a) of the list of issues

122. The Law on Statistics stipulates that the "rate of persons with disabilities" is included in the list of national statistical indicators. Viet Nam has conducted the 2nd Disability Survey in 2023 (based on the Washington Group Questionnaire) to collect information for compiling national statistical indicators on persons with disabilities; collecting information on persons with disabilities for policy-making purposes to ensure the rights of persons with disabilities, monitoring and evaluating the implementation of Viet Nam's laws, as well as fulfilling Viet Nam's international commitments related to persons with disabilities.

Reply to paragraph 28 (b) of the list of issues

123. The National Committee on Disabilities annually reports on the implementation of policies and legal frameworks for persons with disabilities, which are publicly available on the websites of the Ministry of Labour, Invalids and Social Affairs, the Department of Social Protection, and the mass media.

Reply to paragraph 28 (c) of the list of issues

124. Measures taken include the promulgation and implementation of Circular No. 13/2021/TT-BLDTBXH on the set of statistical indicators for children and child abuse, and handling of administrative violations against acts of child abuse; integration of the ILO's module on persons with disabilities into the Labour Force Survey 2022; carrying out preparatory activities for the periodic National Survey on Persons with Disabilities, such as developing plans, designing survey questionnaires, etc.; research and development of a Circular on management, updating, exploitation and use of databases on persons with disabilities. An annual report on the implementation of gender equality work is submitted to the National Assembly every year.

Article 32
International cooperation

Reply to paragraph 29 of the list of issues

125. The Law on Persons with Disabilities (Article 12) stipulates the development and implementation of international cooperation programs and projects on persons with disabilities. Measures taken to create a roadmap and budget for persons with disabilities to ensure the rights of persons with disabilities, including women with disabilities and their representative organizations, including their rights to be involved and consulted in the design, implementation and evaluation of international cooperation projects, especially projects related to the implementation of the 2030 Agenda for Sustainable Development and the goal towards the ASEAN Enabling Masterplan 2025. These include: (1) Strengthening international cooperation; (2) Strengthening public financial resources through improving the efficiency of the tax system and saving public spending; (3) Innovating public financial management toward an open and transparent one; (4) Mobilizing social resources.

Article 33
National implementation and monitoring

Reply to paragraph 30 (a) of the list of issues

126. Associations for Persons with Disabilities are involved in the local Working Committees on Persons with Disabilities (established under Section IV.13, Article 1 of Decision No. 1100/QD-TTg in 2016). These organizations play a leading role in participating

in provincial-level monitoring activities with other members of the Working Committee to monitor the implementation of the Convention on the Rights of Persons with Disabilities and other monitoring activities related to persons with disabilities in each locality.

Reply to paragraph 30 (b) of the list of issues

127. The Program to Support Persons with Disabilities (Section I.2b, Article 1, Decision No. 1190/QD-TTg in 2020) sets a target of 80% of provinces and cities having organizations for persons with disabilities for period 2026-2030. The Document of 13th National Women's Congress (2022-2027) sets a target of "Striving for at least 80% of women with disabilities to receive support from associations at all levels in various forms".

Reply to paragraph 30 (c) of the list of issues

128. There are persons with disabilities working in agencies that assist the Government in state management on the work for persons with disabilities in Viet Nam. Policies to encourage the recruitment of persons with disabilities according to the Law on Persons with Disabilities (Article 35), and preferential policies in recruiting officials who are war invalids (Article 5 of Decree No. 138/2020/ND-CP).

Reply to paragraph 30 (d) of the list of issues

129. In 2015, Viet Nam established the National Committee on Disabilities to coordinate and monitor the implementation of the CRPD in an objective and independent manner, with operating costs guaranteed by the state budget. Associations of and for persons with disabilities were established early and developed rapidly after the Law on Persons with Disabilities came into effect. The Viet Nam Federation on Disabilities was established in 2011 with the function of participating in monitoring, counter-arguing and evaluating the implementation of legal provisions on persons with disabilities and the International Convention on the Rights of Persons with Disabilities in accordance with the law, with operating costs supported by the state budget.

Reply to paragraph 30 (e) of the list of issues

130. The Constitution, the Law on PWDs, the Law on Gender Equality, the Law on Promulgation of Legislative Documents, and the Law on International Treaties all have provisions ensuring the right of organizations of PWDs, (including organizations of women with disabilities) to fully participate in developing policies and monitoring the implementation of legal provisions related to persons with disabilities in general and the implementation of the CRPD in particular.

Reply to paragraph 30 (f) of the list of issues

131. The National Committee on Disabilities carries out its responsibility for coordinating and monitoring the implementation of the CRPD in an objective and independent manner on the basis of:

- Complying with the "Operating Regulations of Viet Nam National Committee on Disabilities" issued together with Decision No. 01/QD-UBQG on Persons with Disabilities dated March 30, 2016;
- Every year when monitoring the implementation of laws and conventions, the National Committee on Disabilities invites representative organizations of persons with disabilities to participate;
- Not only the National Committee on Disabilities monitors, but ministries, branches, and socio-political organizations are assigned the task of inspecting and monitoring the implementation of the legal framework for persons with disabilities./.